

10:00 a.m. CALENDAR

MATTER OF EVELYN B. McDONNELL SURVIVOR'S TRUST

25PR8922

**PETITIONER'S MOTION TO CONTINUE TRIAL;
RESPONDENT'S MOTION TO STRIKE FIFTH AMENDED
PETITION**

This matter involves a dispute over an amendment to the Evelyn B. McDonnell Survivor Trust dated December 18, 2010 ("Trust.") Now before the Court are two motions: 1) Motion to Strike Amended Petition and 2) Motion to Continue Trial Date. As the motions are interrelated, the Court will consider them together herein.

I. Background

A. Original Petition

On August 14, 2025, Petitioner filed her Petition to Invalidate the Fifth Amendment to the Trust. Petitioner alleged that Evelyn B. McDonnell ("Decedent") died on May 17, 2025 at 100 years of age. (Petition ¶ 1.) Decedent was the Trustor of the Trust, which was a revocable subtrust formed under the McDonnell 1995 Revocable Trust which was entered into between Decedent and her husband George. (*Ibid.*) On December 18, 2010, George died and the terms for his one-half of the community property held in Trust became irrevocable. As the surviving Trustor, the subtrust was also created containing her one-half of community property in Trust. (*Ibid.*)

In June of 2024, Evelyn entered into a long-term nursing home and David indicated that she "may not have much time left." (Petition ¶ 6.) On September 10, 2024, however, Evelyn made a Fifth Amendment to the Trust. (*Id.*) At that time Gary was her sole caretaker and procured the entire estate planning process, including being the only witness present during its execution. (*Id.* ¶ 7.) In addition, he made all her daily healthcare and financial decisions. (*Ibid.*) The changes to the Trust benefited Gary.

At the time of her death, Evelyn had one living adult child, Gary Baker ("Gary") and one predeceased child, David Baker ("David.") (*Id.* ¶ 5.) David died on November 29, 2021, leaving his wife, Donna Baker, and their two children, Petitioner and James Travis Baker. (*Ibid.*)

B. Amended Petition

On March 16, 2026, Petitioner filed an Amended Petition in which she added Gary Baker's wife, Brenda Baker ("Brenda"), as a Respondent. Petitioner alleges that the Fifth Amendment to the Trust completely changed Decedent's long-standing approach to the equitable division of assets and instead gave everything to Gary. (Amended Petition ¶ 9.) Petitioner alleges that Brenda and Gary exercised increasing and substantial influence over Decedent, beginning in June 2024, as Decedent's healthcare began to decline. (*Id.* ¶ 12.) Petitioner alleges Brenda was present during the signing of the Amendment. (*Id.* 21.) The Amended Petition alleges that while Petitioner was aware of Brenda's participation to some degree prior to the filing of the original Petition, it was not until after discovery that she learned of the extent of Brenda's involvement. (*Id.* ¶¶ 42-49.)

II. Legal Standards and Discussion

A. Motion to Strike

A motion to strike lies either to strike: (1) any "irrelevant, false or improper matter inserted in any pleading"; or (2) any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP § 436.) A motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

Petitioner improperly filed the Amended Petition well after the responsive pleading had been made and without leave of Court. (Code Civ. Proc. § 472(a).) The Amended Petition was made without proper motion or declaration as required by California Rules of Court Rule 3.1324. As such, the Amended Petition was filed without conformity to the Rules of Court and may be properly stricken. (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469 [no abuse of discretion to require a plaintiff to bring a motion, compliant with Rules of Court to amend a pleading].)

Generally, the Court will allow for the liberal amendments to pleadings. Indeed, the "policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) However, this liberal policy should only be applied where there is no prejudice to the adverse party. Unwarranted delay is a valid reason for denial of the motion, even if the motion is in proper form. (*Roemer v. Retail Credit Co.* (1975) 44 Cal.App.3d 926, 939 ["denial may rest upon the element of lack of diligence in offering the amendment after knowledge of the facts, or the effect of the delay on the adverse party."].) "Time and knowledge are important factors to be considered when granting or denying a motion to amend." (*Stockton v. Ortiz* (1975) 47 Cal.App.3d 183, 194.)

The trial court has wide discretion in determining whether to allow an amended pleading, but that exercise of discretion requires consideration of a number of facts "including the conduct of the moving party and the belated presentation of the amendment .[Citation]...The law is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court's denial of the amendment. [Citation.]" (*Leader v. Health*

Industries of America, Inc. (2001) 89 Cal.App.4th 603, 613 [internal citations omitted].) “The law is also clear that even if a good amendment is proposed in proper form, unwarranted delay in presenting it may -- of itself -- be a valid reason for denial.” (*Roemer v. Retail Credit Co.* (1975) 44 Cal.App.3d 926, 939-940.; see also *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692 [“There is a platoon of authority to the effect that a long unexcused delay is sufficient to uphold a trial judge’s decision to deny the opportunity to amend pleadings”].)

The opposition contends the motion to strike should be granted as petitioner filed the Amended Petition only seven (7) weeks before the scheduled trial date. Additionally, while Petitioner asserts that she was only aware of Brenda’s involvement in the matter after discovery, materials attached to original Petition are cited to undermine this contention. For instance, Exhibits 10 attached to the Petition is a detailed statement by Petitioner recounting the extent of Brenda’s involvement in Decedent’s affairs and the amendment to the Trust. Similarly, Exhibit 11 is a statement by James Baker also detailing Brenda’s involvement in the Decedent’s affairs and role in the Trust amendment.

In addition to claimed unwarranted delay in bringing the amendment, and the failure to file a proper notice of amendment, allowing the Amended Petition is claimed to also prejudice Respondent and Brenda. First, it does not appear that Brenda was properly served with a summons. (Declaration of K. Greg Peterson (“Peterson Decl.”) ¶ 8.) Second, as evidenced by the Petitioner’s own motion to continue the trial, allowing the Amended Petition with a brand-new party, will require the trial date to be moved potentially significantly into the future. Petitioner will need to file a properly noticed and code-compliant motion to amend, properly serve Brenda, allow her time to obtain counsel and file a responsive pleading, and then engage in her own discovery and defense. This is expressed as substantially prejudicing Respondent who asserts that he has already expended significant time, energy, and finances in preparing for the trial currently scheduled for May 2026.

In ruling on the motions, the Court is tasked with two contradictory dictates: to hold a pro se litigant to the standard of an attorney, but at the same time to insure that a pro se has a fair opportunity to have their position determined on the merits, the latter reflecting a larger public policy. While counsel is correct that petitioner improperly amended a pleading without necessary leave of Court, did not properly verify that amended petition, and improperly served new party Brenda Baker without an issued summons, the balancing of equities tips in petitioner’s favor. Although the exhibits pointed to possible involvement of Brenda Baker, Petitioner sought to involve her as a party only after receiving responses to discovery that essentially expressed documents and information that could be provided by Brenda Baker would not be forthcoming because she was a non-represented, non-party. Additionally, while respondent’s argument focuses on the filing of the purported amendment and motion to continue “only seven weeks before trial”, an alternate view of the timing is that filings occurred within two weeks of receipt of the discovery responses, timing that cannot be reasonably described as delayed.

Additionally, the Court does not find the arguments of prejudice very persuasive as the trial preparation efforts will not be in vain as they will carry forward to a new trial date.

Based on the foregoing, the Court balances the equities and **GRANTS** the Motion to Strike. **However, Petitioner is granted leave** to file a properly verified amended petition naming Brenda Baker within ten (10) Court days of this Ruling, and have a summons issued to allow proper service. If counsel represented Gary Baker will also be representing Brenda Baker, the Court requests Petitioner be notified of this as well as if counsel then will accept service on her behalf to expedite fully involving her in the case so necessary discovery can be conducted.

B. Motion to Continue Trial

A trial court has broad discretion in considering a request for a trial continuance. (*Pham v. Nguyen* (1997) 54 Cal.App.4th 11, 13-18.) The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. (Cal. Rules Ct., Rule 3.1332(c); *In re Marriage of Falcone and Fyke* (2008) 164 Cal.App.4th 814, 823.) Cal Rule of Court 3.1332 provides guidance and factors for the Court to consider in determining whether to grant a motion to continue trial.

In light of the Court's rulings on the motion to strike, a new party will be involved in this litigation rendering the matter no longer at issue. Therefore, the current trial date is vacated and the matter is set for a Trial Setting Conference on June 9, 2026, at 11:30 a.m. in Department 2. At the TSC the Court will expect to be presented with realistic but expeditious timeframes for discovery involving Brenda Baker to be completed, and calendar availability to set the new trial date at the earliest possible date.

The clerk shall provide notice of this ruling to the parties forthwith. Petitioner to submit formal Orders complying with Rule 3.1312 in conformity with these Rulings.